Mutual Non-Disclosure and Non-Circumvention Agreement

Purpose

This Mutual Non-Disclosure and Non-Circumvention Agreement (the "Agreement") is entered into as of June 17, 2026 (the "Effective Date") by and between the Parties identified below.

The Parties wish to explore, discuss, evaluate, and potentially collaborate on Development, design, and deployment of a multi-vendor ecommerce platform serving the Bangladesh market, including vendor management and onboarding, catalog and inventory management, multi-location inventory, SKU/variant management, payment orchestration (bKash, Nagad, Rocket, SSLCOMMERZ, COD), settlement and payout engine, shipping and courier integration, order management and fulfillment, return and refund processing, vendor and admin web consoles, vendor mobile application, analytics and reporting, promotions and advertising engine, customer marketplace with storefront, search and discovery, cart and checkout, reviews and ratings, live commerce, and related technology consulting, maintenance, and support services.. In connection with these discussions, either Party may disclose or make available to the other Party certain proprietary and confidential information relating to its business, technology, products, services, and operations.

The Parties enter into this Agreement to protect the confidentiality of such information and to define their respective rights and obligations with respect thereto.

Parties

Party A:
Name: App Brainer
Email: hello@appbrainer.tech
Phone: +8801841737686

Party B:
Name: Nur Islam Farjat (Tiger Bhai)
Email: tigerbhaioffice@gmail.com
Phone: 01537290368

Each Party may act as a Disclosing Party or a Receiving Party depending on the nature and source of the information disclosed. Each Party represents that the person executing this Agreement on its behalf has the full authority to bind such Party to the terms hereof.

Definition of Confidential Information

For purposes of this Agreement, "Confidential Information" means any and all non-public information, in whatever form or medium, disclosed by or on behalf of the Disclosing Party to the Receiving Party, whether before, on, or after the Effective Date, that:

- Is marked, labeled, or identified as "Confidential" or "Proprietary" at the time of disclosure; or
- Would reasonably be understood to be confidential given the nature of the information and the circumstances of its disclosure.

Confidential Information includes, but is not limited to:

- Business plans, strategies, roadmaps, and financial projections
- Trade secrets, know-how, methodologies, and technical specifications
- Source code, software architectures, algorithms, and system designs
- Product designs, prototypes, wireframes, and user experience documentation
- Client lists, customer data, pricing models, and supplier information
- Marketing strategies, campaign data, and performance analytics

• Personnel information and organizational structures
• Any other information that derives independent economic value from not being generally known

Confidential Information may be disclosed orally, in writing, electronically, or through any other medium. The Receiving Party acknowledges that all Confidential Information is proprietary to the Disclosing Party and is of substantial value.

Mutual Obligations and Permitted Disclosures

Each Party, when acting as a Receiving Party, agrees and undertakes as follows:

(a) Non-Disclosure — the Receiving Party shall hold all Confidential Information in the strictest confidence and shall not, without the Disclosing Party's prior written consent, disclose, reveal, publish, distribute, or otherwise make available any Confidential Information to any third party.

(b) Limited Use — the Receiving Party shall use the Confidential Information solely and exclusively for the Purpose described in this Agreement and for no other purpose whatsoever.

(c) Restricted Access — the Receiving Party shall limit internal access to Confidential Information to those directors, officers, employees, agents, and contractors who:
• Have a genuine and legitimate need to know such information for the Purpose;
• Are bound by written confidentiality obligations at least as protective as the terms of this Agreement; and
• Have been informed of the confidential nature of the information.

(d) Duty of Care — the Receiving Party shall protect the Confidential Information using at least the same degree of care it uses to protect its own confidential information of a similar nature, but in no event less than reasonable care, and shall promptly notify the Disclosing Party in writing upon becoming aware of any unauthorized use or disclosure.

(e) No Reverse Engineering — the Receiving Party shall not decompile, disassemble, reverse engineer, or attempt to derive the composition or underlying structure of any software, prototypes, or technical materials that constitute Confidential Information.

(f) No Copying — the Receiving Party shall not reproduce or copy Confidential Information except as strictly necessary for the Purpose, and all copies shall bear the same confidentiality notices as the originals.

(g) Permitted Disclosures — notwithstanding the foregoing, the Receiving Party may disclose Confidential Information to its legal counsel, accountants, auditors, insurers, investors, potential investors, advisors, and technical consultants, provided that such recipients are bound by confidentiality obligations at least as restrictive as those set forth in this Agreement and have a legitimate need to know such information.

Exclusions from Confidential Information

The obligations of confidentiality set forth in this Agreement shall not apply to information that the Receiving Party can demonstrate by competent written evidence:

(a) Was already in the public domain at the time of disclosure, or subsequently enters the public domain through no fault or breach of this Agreement by the Receiving Party;

(b) Was already in the Receiving Party's lawful possession without any obligation of confidentiality prior to its disclosure by the Disclosing Party;

(c) Was independently developed by the Receiving Party without any use of, reference to, or reliance upon the Disclosing Party's Confidential Information;

(d) Was rightfully obtained by the Receiving Party from a third party who is not under any obligation of confidentiality to the Disclosing Party and who has the lawful right to disclose such information; or

(e) Is required to be disclosed by law, regulation, court order, or governmental authority, provided that the Receiving Party:
• Gives the Disclosing Party prompt written notice of such requirement before disclosure, to the extent legally permitted;
• Cooperates with the Disclosing Party in any lawful effort to obtain a protective order or other confidential treatment; and
• Discloses only that portion of the Confidential Information that is legally required.

Pre-Existing Intellectual Property

Each Party retains all right, title, and interest in and to its pre-existing intellectual property, including but not limited to:

• Software source code, libraries, frameworks, components, and modules developed independently before or outside the scope of the proposed project;
• Development tools, templates, methodologies, know-how, techniques, and architectural patterns;
• Designs, UI components, design systems, and visual assets created prior to or independently of the proposed project;
• Business processes, algorithms, data structures, and technical solutions of general applicability;
• Any intellectual property rights in the foregoing.

No ownership, license, or transfer of any pre-existing intellectual property occurs under this Agreement unless expressly agreed in a separate written agreement. If any pre-existing intellectual property is incorporated into work product created during the proposed project, the owning Party grants the other Party a limited, non-exclusive, non-transferable, royalty-free license to use such pre-existing intellectual property solely as incorporated and as part of the larger work product, and for no other purpose.

This section is intended to protect each Party's existing investments in intellectual property and shall survive any expiration or termination of this Agreement.

Non-Circumvention

The Parties agree as follows:

(a) The Receiving Party shall not, directly or indirectly, use any Confidential Information disclosed by the Disclosing Party to bypass, avoid, circumvent, or replace the Disclosing Party in connection with the proposed project or any related opportunity.

(b) Without limiting the generality of the foregoing, the Receiving Party shall not engage any third-party developer, agency, vendor, contractor, service provider, or consultant to implement, develop, or execute substantially the same concept, architecture, technical plan, proposal, business model, system design, or project plan disclosed by the Disclosing Party under this Agreement, without the prior written consent of the Disclosing Party.

(c) This non-circumvention obligation shall apply for a period of two (2) years from the date of disclosure of the relevant Confidential Information, or for the duration of any subsequent commercial agreement between the Parties, whichever is longer.

(d) Nothing in this section shall prevent the Receiving Party from pursuing business activities that are independently developed or that are in the public domain, as demonstrated by competent written evidence.

No Obligation to Proceed

Nothing in this Agreement obligates either Party to:

(a) Enter into any transaction, partnership, employment, investment, software development engagement, or commercial relationship with the other Party;

(b) Disclose any specific Confidential Information to the other Party;

(c) Proceed with any proposed project or discussion beyond the initial evaluation;

(d) Enter into any exclusive or preferential arrangement with the other Party.

Each Party acknowledges that this Agreement is a precondition to discussions and does not constitute a commitment to proceed with any business relationship. Either Party may discontinue discussions at any time, for any reason, without liability to the other Party, subject only to the continuing confidentiality obligations set forth herein.

Term and Survival

This Agreement shall become effective as of the Effective Date and shall remain in full force and effect for a period of 3 years from the Effective Date (the "Term").

The confidentiality obligations set forth herein with respect to the following categories of Confidential Information shall survive the expiration or termination of this Agreement as follows:

- Trade secrets — indefinitely, for so long as such information constitutes a trade secret under applicable law
- Source code, algorithms, technical architecture, system designs, proprietary methodologies, and technical specifications — shall remain confidential for so long as such information is not publicly known, or for a period of 35 years from the date of disclosure, whichever is longer
- Business plans, financial information, and all other Confidential Information — 3 years from the date of disclosure

Upon expiration or termination of this Agreement, or upon the Disclosing Party's earlier written request, the Receiving Party shall, within fifteen (15) calendar days:

- Return all tangible materials containing Confidential Information to the Disclosing Party; and
- Permanently delete or destroy all electronic copies of Confidential Information, including any back-ups; and
- Provide a written certification signed by an authorized representative confirming compliance with this provision.

No Warranty and No License

All Confidential Information is provided on an "AS IS" basis. The Disclosing Party makes no representations or warranties, express or implied, regarding the accuracy, completeness, or reliability of any Confidential Information.

Nothing in this Agreement shall be construed as granting, by implication, estoppel, or otherwise, any license, right, or interest in or to any patent, copyright, trademark, trade secret, or other intellectual property right of the Disclosing Party. All Confidential Information shall remain the exclusive property of the Disclosing Party.

The Receiving Party acknowledges that the Disclosing Party shall not be liable for any damages arising from the Receiving Party's use of or reliance upon the Confidential Information.

This Agreement does not constitute a Software Development Agreement, Master Services Agreement, or any other commercial agreement between the Parties. Any such agreement, if entered into, shall be documented in a separate written instrument signed by both Parties.

Remedies

Each Party acknowledges and agrees that:

(a) Irreparable Harm — any breach of this Agreement, including any actual, threatened, or intended unauthorized use or disclosure of Confidential Information, would cause the non-breaching Party irreparable harm and injury that may not be adequately compensated by monetary damages alone.

(b) Injunctive Relief — accordingly, the non-breaching Party shall be entitled, in addition to any other rights and remedies available at law or in equity, to seek and obtain temporary, preliminary, and permanent injunctive relief from any court of competent jurisdiction, without the necessity of posting any bond or other security, to restrain any breach or threatened breach of this Agreement.

(c) Cumulative Remedies — all remedies provided under this Agreement are cumulative and not exclusive. The non-breaching Party's pursuit of any particular remedy shall not preclude the pursuit of any other remedy available at law or in equity.

(d) Indemnification — the breaching Party agrees to indemnify and hold harmless the non-breaching Party from and against any and all losses, damages, claims, costs, and expenses (including reasonable legal fees) arising from or relating to any breach of this Agreement by the breaching Party.

Governing Law and Miscellaneous

(a) Governing Law — this Agreement shall be governed by, and construed and enforced in accordance with, the laws of Bangladesh, without regard to its conflict of laws principles.

(b) Entire Agreement — this Agreement constitutes the entire understanding between the Parties with respect to the subject matter hereof and supersedes all prior or contemporaneous oral or written communications, agreements, or representations.

(c) Amendments — no modification or amendment to this Agreement shall be effective unless made in writing and signed by duly authorized representatives of both Parties.

(d) Severability — if any provision of this Agreement is found by a court of competent jurisdiction to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it enforceable, or severed if modification is not possible, and the remaining provisions shall continue in full force and effect.

(e) Waiver — no failure or delay by either Party in exercising any right, power, or remedy under this Agreement shall operate as a waiver thereof. A waiver of any breach shall not constitute a waiver of any subsequent breach.

(f) Assignment — neither Party may assign or transfer this Agreement, or any of its rights or obligations hereunder, without the prior written consent of the other Party.

(g) Notices — all notices under this Agreement shall be in writing and delivered by email (with confirmed delivery receipt) or by internationally recognized courier service to the respective email addresses or physical addresses set forth in the Parties section above.

(h) Counterparts — this Agreement may be executed in one or more counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument.

App Brainer

Date: _____

Client

Date: _____